Ada R. Cordero-Sacks, Esq. (SBN: 240274)
Tracey L. Merrell, Esq. (SBN: 266704)
Christopher Godinez, Esq. (SBN: 310599)
LAW OFFICES OF ADA R. CORDERO-SACKS
8399 Topanga Canyon Blvd., Suite 304
West Hills, CA 91304
Email: eservice@loacs.com
Telephone: (818) 343-0100; Facsimile: (818) 343-0070
Attorneys for Plaintiff

Electronically FILED by Superior Court of California, County of Los Angeles 1/09/2026 5:02 PM David W. Slayton, Executive Officer/Clerk of Court, By C. Jimenez, Deputy Clerk

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – CENTRAL DISTRICT

FOX NORMANDIE APARTMENTS, LP Plaintiff, vs. **DERRICK L. BEVERLY**, an individual; and DOES 1 to 5, Defendant	Case Number: **22 STUD 06657** **MEMORANDUM OF POINTS AND AUTHORITIES AND DECLARATION OF TRACEY MERRELL IN SUPPORT OF OSC RE: SANCTIONS AGAINST DEFENDANT** **Hearing Date:** 01/20/2026 **Dept.:** 91 **Time:** 8:30AM

TO DEFENDANTS AND TO THEIR COUNSEL OF RECORD, IF ANY:

PLEASE TAKE NOTICE that on Tuesday, January 20, 2026 at 8:30 a.m. or another day, as may be designated by the Court with notice, the Honorable Judge Madokoro, in Department 91 of this Court, located at 111 N. Hill Street, Los Angeles, California 90012, will hear an order to show cause (OSC) regarding sanctions and/or costs to be imposed on Defendant Derrick L. Beverly, as the Court rules appropriate.

This OSC is made pursuant to California Code of Civil Procedure (CCP) §128.7(b) and California Rules of Court (CRC) §§2.30 and 3.1204, for violations of local court rules, and Judicial Council Rules. This notice of an OSC is supported by the memorandum of points and authorities attached herewith, the sworn declaration of Tracey Merrell concurrently filed herewith, with its internal Exhibits A and B, the records on file in this action, and such oral and documentary evidence as may be properly received at the hearing.

LAW OFFICES OF ADA R. CORDERO-SACKS
8399 Topanga Canyon Blvd., Ste 304
West Hills, CA 91304
(818) 343-0100; Facsimile: (818) 343-0070

DATED: January 9, 2026

Respectfully submitted,

BY 

Tracey L. Merrell, Esq.
Attorney for Plaintiff

LAW OFFICES OF ADA R. CORDERO-SACKS
8399 Topanga Canyon Blvd., Ste 304
West Hills, CA 91304
(818) 343-0100; Facsimile: (818) 343-0070

LAW OFFICES OF ADA R. CORDERO-SACKS
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MEMORANDUM OF POINT AND AUTHORITIES

I. FACTS/PROCEDURAL POSTURE

A. Background Facts

Plaintiff filed its unlawful detainer on October 13, 2022. The case went by way of default on November 21, 2022. The court entered a judgment on November 29, 2022, and issued the Writ of Possession on December 2, 2022. A lockout occurred January 26, 2023. The Defendant was locked out of the property and possession is no longer at issue. Defendant filed his first Appeal on September 11, 2023, close to a year after judgment was entered in this case. This appeal was dismissed for failure to file an Opening Brief after being placed in Default on January 24, 2024. Defendant filed a second appeal on June 10, 2024, ultimately dismissed for failure to procure the record and failure to cure the default on September 23, 2024. Defendant filed a 3rd appeal on November 25, 2024, appealing the same judgment rendered on November 29, 2022. Defendant also filed five (5) separate affirmative lawsuits against the Plaintiff seeking redress from the UD lockout and the disposition of his personal property after the lockout. Defendant also filed a Civil Harassment Restraining Order, Case Number, 23STRO00528 on January 26, 2023, the day of the Sheriff lock-out but it was dismissed for failure to prosecute (tenant did not show up). Since then, Defendant has filed or noticed fifteen (15) different Ex Partes even after admonishment from the court that future defective motions may result in an OSC re Sanctions. The dates for the previous motions are as follows: September 29, 2025, October 9, 2025, October 13, 2025, October 15, 2025, Noticed for October 16, 2025, but not filed, October 17, 2025* Court Notes that future XPs deficient may result in OSC, October 21, 2025, November 4, 2025, November 13, 2025, December 1, 2025, December 3, 2025, December 11, 2025, December 12, 2025, December 19, 2025, and December 22, 2025.

ARGUMENT

II. THE COURT MAY SANCTION DEFENDANTS REPRESENTING THEMSELVES WHO FILE FRIVOLOUS PLEADINGS WITH THE COURT.

Code of Civil Procedure section 128.7 "requires attorneys... to certify, through their signature on documents filed with the court, that every pleading, motion or other similar paper presented to the court has merit and is not being presented for an improper purpose." *Liv. Majestic Industry Hills,*

LAW OFFICES OF ADA R. CORDERO-SACKS
8399 Topanga Canyon Blvd., Ste 304
West Hills, CA 91304
(818) 343-0100; Facsimile: (818) 343-0070

LLC (2009) 177 Cal. App. 4th 585, 590. The certification is designed to create an affirmative duty of investigation as to both law and fact, and thus to deter frivolous actions and costly meritless maneuvers. See *Business Guides, Inc. v. Chromatic Communications Enterprises, Inc*. (1991) 498 U.S. 533, 550, interpreting Federal Rule 11 upon which Code Civ. Proc. §128.7 is patterned. Section 128.7 provides in pertinent part as follows:

> **(b) By presenting to the court, whether by signing, filing, submitting, or later advocating, a pleading, petition, written notice of motion, or other similar paper, an attorney or *unrepresented party* is certifying that to the best of the person's knowledge, information, and belief, formed after an inquiry reasonable under the circumstances, all of the following conditions are met:**
> ***(1) It is not being presented primarily for an improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation.***
> **Emphasis added.**

"The purpose of Section 128.7 is to deter frivolous filings." *In re Marriage of Falcone* (2008) 164 Cal. App. 4th 814, 826. A claim is legally frivolous if it is "not warranted by existing law or a good faith argument for the extension, modification, or reversal of existing law." *Guillemin v. Stein* (2002) 104 Cal. App. 4th 156,167.

> **[W]hen determining whether sanctions should be imposed, the issue is not merely whether the party would prevail on the underlying factual or legal argument. Instead, courts should apply an objective test of reasonableness, including whether "any reasonable attorney would agree that [the claim] is totally and completely without merit.**

Peake v. Underwood (2014) 227 Cal. App. 4th 428, 448, quoting *In re Marriage of Flaherty* (1982) 31 Cal. 3d 637,650. However, "when establishing a claim is factually or legally without merit under Code of Civil Procedure section 12 8.7, it is not necessary to show the party acted with an improper motive or subjective bad faith." *Id*. at 449.

Although an improper motive is not needed, here, it is clear that there can be no other reasonable explanation, since Defendant was previously put on notice through Plaintiff's opposition that the present case had run its course and that there were no further motions available in this proceeding.

Additionally, California Rules of Court (CRC) Rules 2.30 addresses sanctionable conduct which states "*In addition to any other sanctions permitted by law, the court may order a person,*

LAW OFFICES OF ADA R. CORDERO-SACKS
8399 Topanga Canyon Blvd., Ste 304
West Hills, CA 91304
(818) 343-0100; Facsimile: (818) 343-0070

after written notice and an opportunity to be heard, to pay reasonable monetary sanctions to the court or an aggrieved person, or both, for failure without good cause to comply with the applicable rules. For the purposes of this rule, "person" means a party…" Defendant was advised that his multiple motions lacked sufficient declaration of service, lacked a meaningful request for relief, and lacked evidentiary basis for any relief sought. The Minute Orders also reminded Defendant that he failed to comply with CRC 3.1204 or the local rules in the Court's 5th Amended Standing Order dated June 1, 2021.

Further, the Plaintiff in its Opposition filed on October 17, 2025, laid out the argument that there is no legal basis the Defendant could bring before the Court in this particular case that would grant him any relief he requested. The judgment cannot be set aside since it was entered more than 6 months ago and the appellate process has more than been extinguished through 3 appeals. Therefore, Defendant, although in pro per, was on notice that his motion lacked any sufficient merit. He cannot therefore plead ignorance of the law. There can be no alternative determination except that Defendant in filing his serial defective motions that he is doing it precisely for improper purpose with the intent to annoy or harass the Plaintiff and increase the costs of litigation. Plaintiff, although receiving possession close to 3 years ago continues to expend costs by being forced into court to defend against these baseless motions.

III. DEFENDANT, REPRESENTING HIMSELF, HAS FILED A MYRAID OF DEFECTIVE EX PARTE MOTIONS EVEN AFTER HE WAS ADMONISHED/ORDERED TO MAKE SURE FUTURE MOTIONS DID NOT CONTAIN THE SAME DEFECTS.

As stated above, Defendant filed several Ex Parte Motions and noticed others before this court beginning September 29, 2025, which is 1036 days or 2 years and 10 months *after* judgment was entered. Defendant continued to file meritless and frivolous motions even after the Court set this OSC re Sanctions. All of the remedies and motions that could have legally been brough expired *years* ago. Lockout occurred on January 26, 2023, which divested the court of the jurisdiction to deal with possession issues. Defendant also already exercised its rights of appeal, three times over, even where the timeliness of the appeal was defective. The court cannot grant a stay of eviction, because the eviction occurred, close to 3 years ago. His motions lack declarations of proper notice, seeking vague requests with "no factual support or testimony by way of

declaration or affidavit to support the position"[1]. The Court in its ruling and Minute Order dated, October 17, 2025 *and* October 21, 2025 stated that the Defendant has filed four motions in the last week all with the same defects "seeks no specific meaningful relief, were not supported by any facts, authority, declarations, or affidavits, and were not accompanied by a declaration establishing proper notice…" and warned that should the Defendant continue to file motions with similar issues, the Court at Plaintiff's request, would consider an OSC re Sanctions. Defendant filed nine (9) more motions with the same defects after the first admonishment on October 17, 2025.

IV. SANCTIONS IN THE AMOUNT OF $4,605.29 SHOULD BE IMPOSED AGAINST DEFENDANT DERRICK L. BEVERLY FOR FILING THE FRIVOLOUS NON-EXISTENT OMNIBUS MOTION

Code of Civil Procedure section 128.7 sanctions in the amount of $4, 605.29 should be levied against Defendant Derrick L. Beverly based on the filing of the multiple frivolous motions in this case even after admonishment and warnings by the court.

If the court determines that Section 128.7, subdivision (b) has been violated, the court may impose an appropriate sanction upon the attorneys that have violated subdivision (b) or are responsible for the violation. See C. Civ.Proc. § 128.7(c).

> **A sanction imposed for violation of subdivision (b) shall be limited to what is sufficient to deter repetition of this conduct or comparable conduct by others similarly situated. Subject to the limitations in paragraphs (1) and (2), the sanction may consist of, or include, directives of a non monetary nature, an order to pay a penalty into court, or, if imposed on motion and warranted for effective deterrence, an order directing payment to the movant of some or all of the reasonable attorney 's fees and other expenses incurred as a direct result of the violation. Cal.Civ. Proc. § 128.7(d) (emphasis added).**

Counsel for Plaintiff has expended *more than* 10.75 hours on defending these meritless motions. The 10.75 hours only represents the time spent to request the terminating and OSC re Sanctions and the time for efforts made on and after October 17, 2025. Again, prior to these actions, which forced the Plaintiff to file moving papers, there were five (5) motions noticed to Plaintiff. On and after October 17, 2025, there have been ten motions noticed, which include two filings *after* the

[1] October 21, 2025 Minute Order.

LAW OFFICES OF ADA R. CORDERO-SACKS
8399 Topanga Canyon Blvd., Ste 304
West Hills, CA 91304
(818) 343-0100; Facsimile: (818) 343-0070

court set this OSC re Sanctions. This time also does not include time spent by attorneys and staff to review the court's docket to determine if the noticed ex parties were actually filed.

V. MONETARY SANCTIONS MAY NOT BE ENOUGH TO DETER DEFENDANT FROM HIS ABUSE OF PROCESS AND HARASSMENT AND THE COURT SHOULD CONSIDER ADMONISHING DEFENDANT OF COMTEMPT OF COURT UNDER CCP §1209.

Monetary sanctions are meant to deter future improper filings and bad acts. However, an additional option lies before the court and that is finding the Defendant in contempt of court. Plaintiff is not seeking this remedy at this time but wants to advise the court that this may be the only option to deter the Defendant. The pertinent portion of CCP §1209(a)(4) states that the following acts or omissions are contempt in the authority of the court: abuse of the process or proceedings of the court… Defendant acting in pro per, and with a fee waiver, continues to abuse the process by filing motions, even *after* the Court set this OSC re: Sanctions hearing by filing additional frivolous, meritless motions on December 19, 2025 and December 22, 2025. It is clear from Defendant's behavior that he will continue to file motions intended to harass the Plaintiff and increase the costs by forcing Plaintiff's counsel to appear to defend the rights. Therefore, the court should consider using its discretion to warn Defendant future conduct could be considered contempt of court.

VI. CONCLUSION

In sum, moving party plaintiff Fox Normandie respectfully prays this Court grant this motion and order Defendant to pay $4, 605.29 to Fox Normandie for filing a series frivolous and meritless ex parte motions lacking in both fact and law pursuant to CCP §128.7 and failure to follow CRC 2.30 and 3.1204 and the local rules standing order dated June 1, 2021. Further, the Court should consider contempt of court, should the Defendant continue to abuse the court process as stated in CCP §1209(4).

DATED: January 8, 2026

Respectfully submitted,

BY _____
Ada R. Cordero-Sacks, Esq.
Tracey Merrell, Esq.
Christopher Godinez, Esq.
Attorneys for Fox Normandie

LAW OFFICES OF ADA R. CORDERO-SACKS
8399 Topanga Canyon Blvd., Ste 304
West Hills, CA 91304
(818) 343-0100; Facsimile: (818) 343-0070

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8399 Topanga Canyon Blvd., Ste 304
West Hills, CA 91304
(818) 343-0100; Facsimile: (818) 343-0070

AFFIDAVIT/DECLARATION OF TRACEY MERRELL, ESQ.

I, Tracey Merrell, declare as follows:

1. I am over the age of 18 years old. The following facts are within my own personal first-hand knowledge and if called upon to testify in this action as to these matters I could and would competently testify thereto.

2. I am not a party to this action.

3. I am one of the attorneys of record for Plaintiff Fox Normandie.

4. I am a senior attorney at the Law Offices of Ada R. Cordero-Sacks law firm, and one of the three attorneys of record Plaintiff. The firm also has the principle, Ada Cordero-Sacks and associate, Christopher Godinez, as the other attorneys of record, there are also eight (8) other legal assistants for a total of eleven (11) employees.

5. I earned a dual degree *magna cum lade* in 2006 from California State University Northridge in Political Science and Deaf Studies – Sign Language Interpreting.

6. I earned my juris doctor and a certificate of international and comparative law from Depaul University – College of Law in Chicago, Illinois in 2009.

7. I passed the bar and received my law license in 2009.

8. I have practiced landlord tenant law exclusively in my legal career and became a Managing Partner for Education at the statewide firm of Kimball, Tirey & St. Joh LLP where I educated both clients and other attorneys in legal compliance.

9. I am a sought after speaker on landlord tenant issues and presented on both the state and national level.

10. I am currently an editor of the Continuing Education of the Bar (CEB) for the Evictions Handbook and contributing editor for several chapters of the Landlord Tenant Practice Guide for the CEB.

11. In sum, I have sixteen (16) years of experience in the landlord tenant arena.

12. The firm's typical hourly rate for clients is $475. Depending on the complexity of the case, clients may be charged as much as $550 on litigation matters. In this case, Fox Normandie is charged a reduced hourly rate of $425 per hour.

a. Time spent on this matter:

b. Time spent drafting the ex parte opposition to the ex parte motion for October 17, 2025, was 2 hours.

    a. Court e-filing fees were $17.77.

c. Time spent at the October 17, 2021 ex parte hearing was .5 hours.

d. Atty Chris Godinez appeared on October 21, 2025 and billed .75

e. Drafted Second Opposition to December 3rd Notice of Ex Parte and billed 1.5 hours although that Notice Motion was not filed.

f. Time spent on December 11, 2025 ex parte hearing was 1 hour.

g. Did not charge the client for appearance at December 12, 2025 hearing.

h. Time spent on this motion was 4 hours.

i. Time anticipated for the hearing is 1 hour.

j. Anticipated fees for filing this motion will be $18.77

k. Total time requested 10.75 hours x $425 = $4,568.75.

l. Fees requested: $36.54.

m. Total amount requested is $4, 605.29.

13. This time does not include the time spent on the five (5) meritless ex parte motions filed prior to the October 17th motion.

14. This time also does not include the time spent by attorneys and staff to review the court docket to determine if the noticed ex parties were actually filed.

15. True and Correct Copies of the Minute Orders that reflected the Court's admonitions dated October 17, 2025 and October 21, 2025 are attached to this Declaration as Exhibit A and incorporated by reference.

16. A true and Correct Copy of the Notice of Ruling and Notice OSC re Sanctions, which attached a true and correct copy of the December 11, 2025 Minute Order are attached as Exhibit B and incorporated by reference.

17. Defendant, even after the Court set this OSC re Sanctions, elected to file 2 additional ex parte

LAW OFFICES OF ADA R. CORDERO-SACKS
8399 Topanga Canyon Blvd., Ste 304
West Hills, CA 91304
(818) 343-0100; Facsimile: (818) 343-0070

applications on December 19, 2025, and December 22, 2025,

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct. Executed this 8th day of January 2026, at Los Angeles, California.



TRACEY MERRELL, ESQ.

LAW OFFICES OF ADA R. CORDERO-SACKS
8399 Topanga Canyon Blvd., Ste 304
West Hills, CA 91304
(818) 343-0100; Facsimile: (818) 343-0070

EXHIBIT A

SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil Division

Central District, Stanley Mosk Courthouse, Department 91

22STUD06657 October 9, 2025
FOX NORMANDIE APARTMENTS, LP vs DERRICK L. BEVERLY 1:30 PM

Judge: Honorable Andrew Esbenshade
Judicial Assistant: B. Colocho
Courtroom Assistant: None

CSR: None
ERM: Proceedings Electronically Recorded
Deputy Sheriff: J. Perez

APPEARANCES:

For Plaintiff(s): Ada R Cordero-Sacks via LACourtConnect

For Defendant(s): No Appearances

NATURE OF PROCEEDINGS: Hearing on Ex Parte Application judicial findings and determinations

The matter is not called for hearing.

The Court has read and considered all documents filed hereto regarding the above-captioned Ex Parte Application in chambers.

After reviewing and considering the Ex Parte Application, the Court orders as follows:

Defendant brings an Ex Parte application for judicial findings and determinations. There is no declaration of notice. Based on the failure to file a declaration establishing proper notice of the Ex Parte hearing as required by California Rule of Court 3.1204, the application is denied.

The Ex Parte Application judicial findings and determinations filed by Derrick L. Beverly on 10/09/2025 is Denied.

Plaintiff to give notice.

(The Court's ruling is given to counsel for Plaintiff by the Judicial Assistant in open court this date.)

SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil Division

Central District, Stanley Mosk Courthouse, Department 91

22STUD06657 October 14, 2025
FOX NORMANDIE APARTMENTS, LP vs DERRICK L. BEVERLY 1:30 PM

Judge: Honorable Mike H. Madokoro
Judicial Assistant: B. Colocho
Courtroom Assistant: None

CSR: None
ERM: Proceedings Electronically Recorded
Deputy Sheriff: A. Alvarez

APPEARANCES:

For Plaintiff(s): Chris Godinez for Ada R Cordero-Sacks via LACourtConnect

For Defendant(s): Derrick L. Beverly

NATURE OF PROCEEDINGS: Hearing on Ex Parte Application for Emergency Hearing

The matter is not called for hearing.

The Court has read and considered all documents filed hereto regarding the above-captioned Ex Parte Application in chambers.

After reviewing and considering the Ex Parte Application, the Court orders as follows:

Defendant brings an Ex Parte Application for Emergency Hearing, seeking unspecified relief. There is no declaration of notice. Based on the failure to file a declaration establishing proper notice of the Ex Parte hearing as required by California Rule of Court 3.1204, the application is denied.

The Ex Parte Application for emergency hearing filed by Derrick L. Beverly on 10/13/2025 is Denied.

Plaintiff is ordered to give notice.

(The Court's ruling is given to Plaintiff's counsel and Defendant by the Judicial Assistant in open court this date.)

SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil Division

Central District, Stanley Mosk Courthouse, Department 91

22STUD06657 October 15, 2025
FOX NORMANDIE APARTMENTS, LP vs DERRICK L. BEVERLY 1:30 PM

Judge: Honorable Mike H. Madokoro
Judicial Assistant: B. Colocho
Courtroom Assistant: None

CSR: None
ERM: Proceedings Electronically Recorded
Deputy Sheriff: A. Alvarez

APPEARANCES:

For Plaintiff(s): Chris Godinez for Ada R Cordero-Sacks via LACourtConnect

For Defendant(s): Derrick L. Beverly

NATURE OF PROCEEDINGS: Hearing on Ex Parte Application motion to reconsideration

The matter is not called for hearing.

The Court has read and considered all documents filed hereto regarding the above-captioned Ex Parte Application in chambers.

After reviewing and considering the Ex Parte Application, the Court orders as follows:

Defendant brings an Ex Parte Application for Reconsideration that is handwritten and somewhat illegible, seeking unspecified relief. There is no required declaration signed and dated under penalty of perjury of notice of this Ex Parte Application. Based on the failure to file the required and complete declaration establishing proper notice of the Ex Parte hearing as required by California Rule of Court 3.1204, the application is denied.

The Ex Parte Application motion to reconsideration filed by Derrick L. Beverly on 10/14/2025 is Denied.

Plaintiff is ordered to give notice.

(The Court's ruling is given to Plaintiff's counsel and Defendant by the Judicial Assistant in open court this date.)

SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil Division

Central District, Stanley Mosk Courthouse, Department 91

22STUD06657 October 17, 2025
FOX NORMANDIE APARTMENTS, LP vs DERRICK L. BEVERLY 1:30 PM

Judge: Honorable Mike H. Madokoro
Judicial Assistant: B. Colocho
Courtroom Assistant: None

CSR: None
ERM: Proceedings Electronically Recorded
Deputy Sheriff: A. Alvarez

APPEARANCES:

For Plaintiff(s): Tracey Merrell for Ada R Cordero-Sacks via LACourtConnect

For Defendant(s): Derrick L. Beverly

NATURE OF PROCEEDINGS: Hearing on Ex Parte Application Violation of Due process

The matter is not called for hearing.

The Court has read and considered all documents filed hereto regarding the above-captioned Ex Parte Application in chambers.

After reviewing and considering the Ex Parte Application in chambers, the Court orders as follows:

The Ex Parte Application Violation of Due process filed by Derrick L. Beverly on 10/17/2025 is Denied.

Defendant brings an Ex Parte Application for Due Process and other purportedly listed items but provides no authority, argument, or statements as to what relief is being sought. Plaintiff has filed an Opposition setting forth the long and sordid history and background of this matter. Further, there is no declaration of notice for the Ex Parte. Based on the failure to file a declaration establishing proper notice of the Ex Parte hearing as required by California Rule of Court 3.1204, and therefore, the application is denied.

This is the third Ex Parte Application this court has received this week from Defendant, each of which sought no specific relief, were not supported by any facts, authority, declarations, or affidavits, and were not accompanied by a declaration establishing proper notice of the Ex Parte hearing as required by California Rule of Court 3.1204, and as set forth in this Court's Fifth Amended Standing Order, dated June 1, 2021. Should Defendant file another Ex Parte Application that fails to specify any specific relief sought, fails to provide proper notice, or results in a denial based on such procedural grounds, at Plaintiff's request as set forth in its Opposition, this court will consider setting a hearing on an Order to Show Cause re Sanctions.

SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil Division

Central District, Stanley Mosk Courthouse, Department 91

22STUD06657 October 17, 2025
FOX NORMANDIE APARTMENTS, LP vs DERRICK L. BEVERLY 1:30 PM

Judge: Honorable Mike H. Madokoro
Judicial Assistant: B. Colocho
Courtroom Assistant: None

CSR: None
ERM: Proceedings Electronically Recorded
Deputy Sheriff: A. Alvarez

Plaintiff is ordered to give notice.

(The Court's ruling is given to Plaintiff's counsel and Defendant by the Judicial Assistant in open court this date.)

SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil Division

Central District, Stanley Mosk Courthouse, Department 91

22STUD06657 December 11, 2025
FOX NORMANDIE APARTMENTS, LP vs DERRICK L. BEVERLY 1:30 PM

Judge: Honorable Mike H. Madokoro
Judicial Assistant: B. Colocho
Courtroom Assistant: None

CSR: None
ERM: Proceedings Electronically Recorded
Deputy Sheriff: A. Alvarez

APPEARANCES:

For Plaintiff(s): Tracey Merrell for Ada R Cordero-Sacks via LACourtConnect

For Defendant(s): Derrick L. Beverly (Self-Represented)

NATURE OF PROCEEDINGS: Hearing on Ex Parte Application for temporary stay

The matter is called for hearing.

The Court has read and considered all documents filed herein connection regarding Defendant's Ex Parte Application for temporary stay.

Counsel for Plaintiff appears in opposition.

Parties are given the opportunity to argue.

After reading and considering all moving papers filed, and hearing oral argument, the Court makes its Final Ruling as follows:

The Ex Parte Application for temporary stay filed by Derrick L. Beverly on 12/11/2025 is Denied.

Defendant brings an Ex Parte Application with regard to a default judgment that was entered on November 29, 2022, and enforced by lockout on January 2, 2023. However, the relief sought by Defendant is not only vague, but he provides no factual support or testimony by way of declaration or affidavit to support his position. There is reference to a Declaration of Derrick Lamont Beverly along with references to other Declamations and Exhibits A-H, none of these purported documents were submitted in support of Defendant's present current Ex Parte Application.

Moreover, there is no declaration of notice for the Ex Parte Application. Based on the failure to file a declaration establishing proper notice of the Ex Parte hearing as required by California Rule of Court 3.1204, Defendant's Ex Parte Application is denied.

SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil Division

Central District, Stanley Mosk Courthouse, Department 91

22STUD06657 December 11, 2025
FOX NORMANDIE APARTMENTS, LP vs DERRICK L. BEVERLY 1:30 PM

Judge: Honorable Mike H. Madokoro
Judicial Assistant: B. Colocho
Courtroom Assistant: None

CSR: None
ERM: Proceedings Electronically Recorded
Deputy Sheriff: A. Alvarez

The court has received numerous Ex Parte Applications filed by Defendant, each of which seeks no specific meaningful relief, were not supported by any facts, authority, declarations, or affidavits, and were not accompanied by a declaration establishing proper notice of the Ex Parte hearing as required by California Rule of Court 3.1204, and as set forth in this Court's 5th Amended Standing Order, dated June 1, 2021.

On October 21, 2025, the Court provided that should Defendant file another Ex Parte Application that fails to provide any specific relief sought, fails to provide proper notice, or results in a denial based on such procedural grounds, this court will consider setting a hearing on an Order to Show Cause re Sanctions upon Plaintiff's request. As Plaintiff has made such request, this Court orders a hearing on an order to show cause as to why sanctions should not be imposed upon Defendant for filing numerous inappropriate and insufficient motions to set aside judgment as follows:

Order to Show Cause Re: Sanctions Against Defendant is scheduled for 01/20/2026 at 08:30 AM in Department 91 at Stanley Mosk Courthouse.

Plaintiff is ordered to serve and file any briefs, declarations, and supporting documents with regard to this order to show cause hearing no later than January 8, 2025, close of business (5:00 p.m.).

Plaintiff to give notice.

SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil Division

Central District, Stanley Mosk Courthouse, Department 91

22STUD06657 December 12, 2025
FOX NORMANDIE APARTMENTS, LP vs DERRICK L. BEVERLY 1:30 PM

Judge: Honorable Mike H. Madokoro
Judicial Assistant: B. Colocho
Courtroom Assistant: None

CSR: None
ERM: Proceedings Electronically Recorded
Deputy Sheriff: A. Alvarez

APPEARANCES:

For Plaintiff(s): Tracey Merrell for Ada R Cordero-Sacks via LACourtConnect

For Defendant(s): No Appearances

NATURE OF PROCEEDINGS: Hearing on Ex Parte Application Ex parte

The matter is called for hearing.

There are no appearances by or for Defendant.

The Court has read and considered all documents filed herein connection regarding Defendant's Ex Parte Application.

Counsel for Plaintiff appears in opposition.

As Defendant and moving party Derrick La Mont Beverly failed to appear for today's hearing, the Court orders as follows:

The Ex parte filed by Derrick L. Beverly on 12/11/2025 is Off Calendar.

Clerk to give notice.

Certificate of Service is attached.

EXHIBIT B

Ada R. Cordero-Sacks, Esq. (SBN: 240274)
Tracey L. Merrell, Esq. (SBN: 266704)
Christopher Godinez, Esq. (SBN: 310599)
LAW OFFICES OF ADA R. CORDERO-SACKS
8399 Topanga Canyon Blvd., Suite 304
West Hills, CA 91304
Email: eservice@loacs.com
Telephone: (818) 343-0100; Facsimile: (818) 343-0070
Attorneys for Plaintiff

Electronically FILED by Superior Court of California, County of Los Angeles 12/16/2025 3:08 PM David W. Slayton, Executive Officer/Clerk of Court, By D. Diaz, Deputy Clerk

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – CENTRAL DISTRICT

FOX NORMANDIE APARTMENTS, LP Plaintiff, vs. **DERRICK L. BEVERLY**, an individual; and DOES 1 to 5, Defendant	Case Number: **22 STUD 06657** **NOTICE OF RULING RE EX PARTE APPLICATION; NOTICE OF ORDER TO SHOW CAUSE HEARING RE: SANCTIONS AGAINST DEFENDANT** **Dept.:** 91 **Ex Parte Hearing: December 11, 2025**

TO DEFENDANTS AND TO THEIR COUNSEL OF RECORD, IF ANY:

PLEASE TAKE NOTICE that the Court heard Defendant's Ex Parte Application for Temporary Stay on December 11, 2025, at 1:30 p.m. Counsel for Plaintiff, Law Offices of Ada R. Cordero-Sacks, appeared via LACourtConnect. Defendant appeared in person. Defendant's ex parte application was DENIED. Further, the Court set an Order to Show Cause Re: Sanctions Against Defendant for January 20, 2026, at 8:30 a.m. in Department 91 of the Stanley Mosk Courthouse. Plaintiff is to file and serve any briefs, declarations, and supporting documents with regard to the OSC hearing no later than close of business, or 5:00 p.m. on January 8, 2025. A true and correct copy of the Court's Minute Order is attached hereto as "**Exhibit A**." Plaintiff give Notice.

DATED: December 16, 2025

Respectfully submitted,

BY _____
Tracey L. Merrell, Esq.
Attorney for Plaintiff

LAW OFFICES OF ADA R. CORDERO-SACKS
8399 Topanga Canyon Blvd., Ste 304
West Hills, CA 91304
(818) 343-0100: Facsimile: (818) 343-0070

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(818) 343-0100; Facsimile: (818) 343-0070

EXHIBIT A
DEC. 11, 2025 MINUTE ORDER

SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil Division

Central District, Stanley Mosk Courthouse, Department 91

22STUD06657 December 11, 2025
FOX NORMANDIE APARTMENTS, LP vs DERRICK L. BEVERLY 1:30 PM

Judge: Honorable Mike H. Madokoro
Judicial Assistant: B. Colocho
Courtroom Assistant: None

CSR: None
ERM: Proceedings Electronically Recorded
Deputy Sheriff: A. Alvarez

APPEARANCES:

For Plaintiff(s): Tracey Merrell for Ada R Cordero-Sacks via LACourtConnect

For Defendant(s): Derrick L. Beverly (Self-Represented)

NATURE OF PROCEEDINGS: Hearing on Ex Parte Application for temporary stay

The matter is called for hearing.

The Court has read and considered all documents filed herein connection regarding Defendant's Ex Parte Application for temporary stay.

Counsel for Plaintiff appears in opposition.

Parties are given the opportunity to argue.

After reading and considering all moving papers filed, and hearing oral argument, the Court makes its Final Ruling as follows:

The Ex Parte Application for temporary stay filed by Derrick L. Beverly on 12/11/2025 is Denied.

Defendant brings an Ex Parte Application with regard to a default judgment that was entered on November 29, 2022, and enforced by lockout on January 2, 2023. However, the relief sought by Defendant is not only vague, but he provides no factual support or testimony by way of declaration or affidavit to support his position. There is reference to a Declaration of Derrick Lamont Beverly along with references to other Declamations and Exhibits A-H, none of these purported documents were submitted in support of Defendant's present current Ex Parte Application.

Moreover, there is no declaration of notice for the Ex Parte Application. Based on the failure to file a declaration establishing proper notice of the Ex Parte hearing as required by California Rule of Court 3.1204, Defendant's Ex Parte Application is denied.

SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil Division

Central District, Stanley Mosk Courthouse, Department 91

22STUD06657 December 11, 2025
FOX NORMANDIE APARTMENTS, LP vs DERRICK L. BEVERLY 1:30 PM

Judge: Honorable Mike H. Madokoro
Judicial Assistant: B. Colocho
Courtroom Assistant: None

CSR: None
ERM: Proceedings Electronically Recorded
Deputy Sheriff: A. Alvarez

The court has received numerous Ex Parte Applications filed by Defendant, each of which seeks no specific meaningful relief, were not supported by any facts, authority, declarations, or affidavits, and were not accompanied by a declaration establishing proper notice of the Ex Parte hearing as required by California Rule of Court 3.1204, and as set forth in this Court's 5th Amended Standing Order, dated June 1, 2021.

On October 21, 2025, the Court provided that should Defendant file another Ex Parte Application that fails to provide any specific relief sought, fails to provide proper notice, or results in a denial based on such procedural grounds, this court will consider setting a hearing on an Order to Show Cause re Sanctions upon Plaintiff's request. As Plaintiff has made such request, this Court orders a hearing on an order to show cause as to why sanctions should not be imposed upon Defendant for filing numerous inappropriate and insufficient motions to set aside judgment as follows:

Order to Show Cause Re: Sanctions Against Defendant is scheduled for 01/20/2026 at 08:30 AM in Department 91 at Stanley Mosk Courthouse.

Plaintiff is ordered to serve and file any briefs, declarations, and supporting documents with regard to this order to show cause hearing no later than January 8, 2025, close of business (5:00 p.m.).

Plaintiff to give notice.

LAW OFFICES OF ADA R. CORDERO-SACKS
8399 Topanga Canyon Blvd., Ste 304
West Hills, CA 91304
(818) 343-0100; Facsimile: (818) 343-0070

PROOF OF SERVICE

COUNTY OF LOS ANGELES, STATE OF CALIFORNIA:

I am employed in the County of Los Angeles, State of California. I am over the age of 18 and not a party to the within action. My business address is: 8399 Topanga Canyon Blvd., Suite 304, West Hills, CA 91304

On **December 16, 2025,** I served the foregoing document described **NOTICE OF RULING RE EX PARTE APPLICATION; NOTICE OF ORDER TO SHOW CAUSE HEARING RE: SANCTIONS AGAINST DEFENDANT** in this action by placing [X] the original [ ] a true and correct copy therefore enclosed in a sealed envelope with postage thereon fully prepaid, in the United States mail at Los Angeles, California addressed as follows:

DERRICK L. BEVERLY
1738 N. Las Palmas Avenue
Los Angeles, CA 90028
Email: dernierecrilamont@yahoo.com;

[X] [BY MAIL] Pursuant to CCP § 1013(a) and under firm practice said envelope would be deposited with the U.S. Postal Service on the same day with postage thereof fully prepaid at West Hills, California in the ordinary course of business. I am readily familiar with the Law Offices of Ada R. Cordero-Sacks ordinary business practice of collection and processing correspondence for mailing. I followed this business practice, and I placed the envelope for collection and mailing on the date identified above. I am aware that on a motion of the party served, service is presumed invalid if postage cancellation date or postage date is more than one day after date of deposit for mailing in affidavit. I deposited such envelope in the U.S. mail at West Hills, California.

[ ] United States Postal Service Next Day Shipping

[ ] [BY PERSONAL SERVICE] I caused our process server to deliver such envelope by hand to the address above.

[X] [ELECTRONIC SERVICE] I caused said document(s) to be transmitted to the email address(es) of the addressee(s) designated.

[X] [STATE] I declare under penalty of perjury under the laws of the State of California that the above is true and correct

DATED: December 16, 2025

Karina Medina

LAW OFFICES OF ADA R. CORDERO-SACKS
8399 Topanga Canyon Blvd., Ste 304
West Hills, CA 91304
(818) 343-0100; Facsimile: (818) 343-0070

PROOF OF SERVICE

COUNTY OF LOS ANGELES, STATE OF CALIFORNIA:

I am employed in the County of Los Angeles, State of California. I am over the age of 18 and not a party to the within action. My business address is: 8399 Topanga Canyon Blvd., Suite 304, West Hills, CA 91304

On **January 9, 2026,** I served the foregoing document described **MEMORANDUM OF POINTS AND AUTHORITIES AND DECLARATION OF TRACEY MERRELL IN SUPPORT OF OSC RE: SANCTIONS AGAINST DEFENDANT** in this action by placing [X] the original [ ] a true and correct copy therefore enclosed in a sealed envelope with postage thereon fully prepaid, in the United States mail at Los Angeles, California addressed as follows:

DERRICK L. BEVERLY
1738 N. Las Palmas Avenue
Los Angeles, CA 90028
Email: derniercrilamont@yahoo.com;

[X] [BY MAIL] Pursuant to CCP § 1013(a) and under firm practice said envelope would be deposited with the U.S. Postal Service on the same day with postage thereof fully prepaid at West Hills, California in the ordinary course of business. I am readily familiar with the Law Offices of Ada R. Cordero-Sacks ordinary business practice of collection and processing correspondence for mailing. I followed this business practice, and I placed the envelope for collection and mailing on the date identified above. I am aware that on a motion of the party served, service is presumed invalid if postage cancellation date or postage date is more than one day after date of deposit for mailing in affidavit. I deposited such envelope in the U.S. mail at West Hills, California.

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[X] [STATE] I declare under penalty of perjury under the laws of the State of California that the above is true and correct

DATED: January 9, 2026

Karina Medina